



CHAPTER xxxvi.

An Act to enable the Dublin and South Eastern Railway Company to make certain diversion railways in the county of Wicklow to apply their capital and funds and to confer further powers on them in relation to their general undertaking and for other purposes.

A.D. 1912.

[7th August 1912.]

WHEREAS the main line of the railway belonging to the Dublin and South Eastern Railway Company (in this Act called "the Company") for a distance of about fifteen miles runs along the foreshore of the sea or on cliffs adjacent thereto and is exposed to the attacks of the sea and serious encroachment has from time to time taken place involving the interruption of public traffic on the said railway for considerable periods:

And whereas by the Dublin Wicklow and Wexford Railway Act 1903 (in this Act called "the Act of 1903") the Company were authorised to abandon the portions of the Company's railway so exposed to injury from the sea and to make and maintain the diversion Railways Nos. 1 2 and 3 and other works therein described and to raise moneys for the purposes thereof by the issue of prior debenture stock in the manner and subject to the sanctions specified in the Act of 1903:

And whereas by virtue of the provisions of the Dublin Wicklow and Wexford Railway Act 1906 (in this Act called "the Act of 1906") the name of the Company was changed from the Dublin Wicklow and Wexford Railway Company to the Dublin and South Eastern Railway Company and the debenture stocks the preference stocks and the ordinary stock of the Company were converted and consolidated and the Act of 1903

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A.D. 1912. was amended and further provision was made as to the raising of moneys for the purposes of the said diversion railways authorised by the Act of 1903 and for other purposes of the Company :

And whereas by the Dublin and South Eastern Railway Act 1908 (hereinafter called "the Act of 1908") the period limited by the Act of 1903 as extended by the Act of 1906 for the compulsory purchase of lands for the said diversion railways and works was extended until the eleventh day of August one thousand nine hundred and twelve and the period limited by the Act of 1903 as extended by the Act of 1906 for the completion of the said diversion railways was extended until the eleventh day of August one thousand nine hundred and fourteen :

And whereas hitherto it has been found impracticable to raise moneys for the construction of the diversion railways authorised by the Act of 1903 but the powers for the construction of the same are still in force :

And whereas recently serious injury has been caused to the railway of the Company near Bray Head in the county of Wicklow by the attacks of the sea and for the safety of traffic it has become urgently necessary to divert a portion of the existing railway of the Company further inland :

And whereas it is expedient to authorise the Company to abandon and relinquish the portion of the Company's existing railway and also the portion of the diversion Railway No. 3 authorised by the Act of 1903 hereinafter specified and to make and maintain the new diversion railways hereinafter described :

And whereas it is expedient to authorise the Company to apply as hereinafter provided their capital and any moneys which they now have or have power to raise for the purposes of the diversion railways authorised by the Act of 1903 to the purposes of the diversion railways authorised by this Act :

And whereas the Company have during the year last passed paid dividends on their ordinary capital and it is expedient to repeal the provisions of the Act of 1903 with reference to the deposit fund of eight thousand nine hundred and eight pounds seven shillings and fourpence consolidated stock made in respect of the diversion railways authorised by the Act of 1903 and to provide for the release of the said deposit fund :

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And whereas plans and sections showing the lines and levels of the diversion railways authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Wicklow and are hereinafter respectively referred to as the deposited plans sections and books of reference : A.D. 1912.

And whereas by the Dublin Wicklow and Wexford Railway Act 1900 (in this Act called "the Act of 1900") the Company were authorised to acquire compulsorily the lands described in section 16 of the Act of 1900 and they were also authorised to acquire compulsorily lands for and to construct certain widenings of bridges at Bray described in section 18 of the Act of 1900 :

And whereas the period limited by the Act of 1900 for the compulsory purchase of the said lands described in section 16 of that Act was by the Act of 1908 extended to and expired on the thirtieth day of July one thousand nine hundred and eleven :

And whereas the period limited by the Act of 1900 for the compulsory purchase of the said lands described in section 18 of that Act for widenings of bridges at Bray was by the Dublin Wicklow and Wexford Railway Act 1905 (in this Act called "the Act of 1905") extended to and expired on the thirtieth day of July one thousand nine hundred and eight :

And whereas it is expedient to revive the powers of the Company and to extend the period limited for the compulsory purchase of the lands above referred to :

And whereas it is expedient that the other provisions hereinafter contained should be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Dublin and South Eastern Railway Act 1912. Short title.

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Incorporation of Acts.

2. Subject to the provisions of this Act the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 are (except where expressly varied by or inconsistent with this Act) incorporated with and form part of this Act.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction or unless it is otherwise explained—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings;

The expression "the general undertaking" means the general undertaking of the Company other than and exclusive of the separate undertakings of the City of Dublin Junction Railways and of the New Ross and Waterford Extension Railways;

The expressions "the diversion railways" or "the railway" mean the diversion railways authorised by this Act.

As to deposit of plans with clerks of district councils.

4. The provisions of sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act be read and construed as if the expression "clerks of the district councils within which such parishes are included in Ireland" or the words "clerks of the district councils" (as the case may be) had been used and inserted in such sections in lieu of the expression "the postmasters of the post towns in or nearest to such parishes in Ireland" or in lieu of the word "postmasters" (as the case may be).

Power to make railways.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the diversion railways hereinafter described with all proper tunnels stations sidings junctions bridges roads approaches works and conveniences connected therewith and may enter upon take hold and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose The diversion railways hereinbefore referred to and authorised by this Act are—

A Railway No. 1 (hereinafter called "Railway No. 1") one mile six furlongs and three chains in length being a

diversion of the main line of the Company's railway commencing in the townland of Rathdown Upper parish of Delgany and county of Wicklow at a point on the Company's said main line situate about five yards or thereabouts measured in a southerly direction from the south face of No. 3 tunnel (being the most southerly tunnel of the Company's railway on Bray Head) and terminating in the townland of Rathdown Lower parish of Delgany and county of Wicklow at a point on the Company's said main line situate one thousand and seventy yards or thereabouts measured in a north-westerly direction from the north-east corner of Greystones railway station house :

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A Railway No. 2 (hereinafter called " Railway No. 2 ") one furlong in length situate wholly in the townland of Rathdown Upper parish of Delgany and county of Wicklow commencing by a junction with Railway No. 1 at a point on the centre line thereof distant one mile and eighty-three yards or thereabouts from the commencement of Railway No. 1 and terminating by a junction with Railway No. 3 authorised by the Act of 1903 at a point on the centre line thereof distant six furlongs and eighty yards or thereabouts from the commencement of the said Railway No. 3.

6. So soon as Railway No. 1 by this Act authorised shall be completed and opened for public conveyance of passengers the Company may abandon and relinquish—

Parts of existing and authorised railways may be abandoned and release from obligations &c.

So much of the Company's main line of railway as is situated between the commencement and termination of Railway No. 1;

and from and after the passing of this Act the Company may abandon and relinquish—

So much of Railway No. 3 authorised by the Act of 1903 as is situated between the commencement of the said Railway No. 3 and the point of junction therewith of Railway No. 2;

and thereupon in each case the Company (subject as regards the said portion of the said Railway No. 3 to the provisions of the two next following sections of this Act) shall be and are hereby released from all liabilities penalties forfeitures and obligations

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A.D. 1912. in respect of the said several portions of railway respectively so abandoned and relinquished as aforesaid:

Provided that all telegraphs on along or across the portion of the existing main line of railway of the Company to be abandoned and relinquished as aforesaid shall at the Company's expense be removed therefrom to Railway No. 1 by this Act authorised before the said portion of railway is abandoned and relinquished as aforesaid.

Compensation for damage to land by entry &c. for purposes of portion of authorised railway abandoned.

7. The abandonment by the Company under the authority of this Act of the said portion of Railway No. 3 authorised by the Act of 1903 shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845.

Compensation to be made in respect of portion of authorised railway abandoned.

8. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to the said portion of the said Railway No. 3 authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Power to retain sell &c. lands.

9. The Company may notwithstanding the provisions of the Lands Clauses Consolidation Act 1845 or any other Act or Acts retain hold sell lease let or otherwise dispose of in perpetuity

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or otherwise and upon such terms and conditions as they think fit any lands belonging to the Company either purchased in connection with or in or upon which the said portions of railways or any part thereof (together with any stations or works connected therewith) authorised to be diverted abandoned and relinquished by this Act are situate. A.D. 1912.

10. Subject to the provisions in the Railways Clauses Consolidation Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of Railway No. 1 carry the same with a single line only whilst the said railway shall consist of a single line and afterwards with a double line only across and on the level of the road next hereinafter mentioned (that is to say):— Power to cross road on level.

No. on deposited Plans.	Parish.	Townland.	Description of Road.
18	Delgany - -	Rathdown Upper -	Public road.

11. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

12. The diversion railways shall for the purposes of tolls rates and charges and for all other purposes be part of the general undertaking of the Company. Diversion railways &c. to be part of general undertaking.

13. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed ten acres but nothing in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land taken under the powers of this section. Lands for extraordinary purposes.

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Period for
compulsory
purchase of
lands.

Period for
completion
of railways.

Power to
take ease-
ments &c. by
agreement.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

14. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

15. If the diversion railways by this Act authorised are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the said railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

17. And whereas in the construction of the diversion railways authorised by this Act or otherwise in exercise of the powers of this Act it may happen that portions only of the lands houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the lands houses or other buildings or manufactories described in the First Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the arbitrator to be appointed pursuant to the provisions of the Railways (Ireland) Act 1851 be severed from the remainder of such properties without material detriment to such remainder be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the

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owners thereof and other parties interested by severance or otherwise. A.D. 1912.

18. With respect to the properties shown on the deposited plans which are described or referred to in the Second Schedule to this Act and notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not be required wholly to take the same or any part of the surface thereof where there shall be a depth of forty feet or more between such surface and the crown of the work but they may purchase take and use and the owners of and other persons interested in any such property shall sell and grant an easement or right of using the subsoil or under surface thereof for the purposes for which but for this enactment they might have been required to sell such property and the provisions of the Lands Clauses Acts with respect to land shall extend and apply to such subsoil easement or right of user Provided that no such subsoil easement or right of user shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845.

Owners may be required to grant easements only under certain properties.

19. The Company shall not under the powers of any former Act revived or extended by this Act or of this Act purchase or acquire in any urban district any house or houses which on the fifteenth day of December last were occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board for Ireland any house or houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restrictions on displacing persons of working class.

If the Company acquire or appropriate any house or houses for the purposes of any former Act the powers of which are revived or extended by this Act or of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board for Ireland by action in the High Court and shall be carried to and form part of the consolidated fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics.

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A.D. 1912. — artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income in any case does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Penalty
unless rail-
ways opened
within time
limited.

20. If the Company fail to complete the diversion railways authorised by this Act within the period limited by this Act the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the particular railway in the completion of which default is made is completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty shall amount to five per centum on the estimated cost of such railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 And every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Accountant-General of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company was prevented from completing or opening such railway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

21. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Dublin Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the diversion railways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company

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by this Act for the purposes of such railways and for which A.D. 1912.
injury or loss no compensation or inadequate compensation shall
have been paid and shall be distributed in satisfaction of such
compensation as aforesaid in such manner and in such proportions
as to the High Court may seem fit And if no such compensation is
payable or if a portion of the sum or sums of money so recovered
by way of penalty as aforesaid shall have been found sufficient
to satisfy all just claims in respect of such compensation then the
said sum or sums of money recovered by way of penalty or such
portion thereof as may not be required as aforesaid shall if a
receiver has been appointed or the Company is insolvent or the
railways or railway in respect of which the penalty shall have
been incurred or any part thereof have or has been abandoned
be paid to such receiver or be applied in the discretion of the
court as part of the assets of the general undertaking of the
Company for the benefit of the creditors thereof and subject to
such application shall be repaid to the Company.

22. The diversion railways by this Act authorised shall for the purposes of section 28 (Application of borrowed moneys) of the Act of 1906 be deemed to be part of the diversion railways authorised by the Act of 1903 and so much of the sum of three hundred and fifty thousand pounds authorised to be raised under the powers of the Act of 1903 as amended by the Act of 1906 as may be required for the purposes of the diversion railways authorised by this Act not exceeding seventy thousand pounds may be applied by the Company for the purposes of the diversion railways authorised by this Act. Power to apply moneys authorised to be raised by Acts of 1903 and 1906 for purposes of diversion railways.

23. Section 31 (Deposit money not to be repaid except so far as railway is opened) and section 32 (Application of deposit) of the Act of 1903 are hereby repealed and the provisions of the sections of this Act of which the marginal notes are respectively "Penalty unless railways opened within time limited" and "Application of penalty" shall mutatis mutandis apply to so much of the diversion railways authorised by the Act of 1903 as is not by this Act authorised to be abandoned as if those sections had been enacted by the Act of 1903 instead of the said sections 31 and 32 of the said Act. Repeal of sections 31 and 32 of Act of 1903 and substitution of other provisions therefor.

24. Notwithstanding anything contained in the Act of 1903 on the application of the depositors referred to in sections 31 and 32 of that Act at any time after the passing of this Act the High Release of deposit fund under Act of 1903.

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A.D. 1912. Court may and shall order that the deposit fund of eight thousand nine hundred and eight pounds seven shillings and fourpence consolidated stock referred to in the Act of 1903 with any interest or dividends accrued thereon or any invested accumulations of the same be paid or transferred to the said depositors or as they may direct and in any application under this section it shall not be necessary to produce any certificate of this Act having passed and the said deposit fund shall be paid or transferred accordingly.

Revival and extension of period for compulsory purchase of lands described in section 16 of Act of 1900.

25. The powers conferred on the Company and the period limited by the Act of 1900 as extended by the Act of 1908 for the compulsory purchase of the following lands and property described in section 16 of the Act of 1900 (namely):—

Certain lands in the township or urban district of Bray parish of Bray and county of Wicklow situate on the west side of and adjoining the Dublin and South Eastern Railway and lying between that railway and a piece of land known as the Carlisle Grounds and bounded on the north by Seapoint Road and on the south by Quinsborough Road;

Certain lands in the township or urban district of Bray parish of Bray and county of Wicklow lying on the east side of and adjoining the Dublin and South Eastern Railway and between that portion of Quinsborough Road which is situate on the east side of the said railway and a road leading from Strand Road to Meath Road and passing the north end of Brennan's Parade;

are and is hereby revived and extended for a period of three years from the passing of this Act.

Revival and extension of period for compulsory purchase of lands for widenings of bridges described in section 18 of Act of 1900.

26. The powers conferred on the Company and the period limited by the Act of 1900 as extended by the Act of 1905 for the compulsory purchase of lands for the widenings of bridges at Bray described in and authorised by section 18 of the Act of 1900 are and is hereby revived and extended for a period of three years from the passing of this Act.

For protection of corporation of Dublin.

27. The provisions of section 29 (For protection of corporation of Dublin) of the Act of 1903 other than subsection (3) of that section shall mutatis mutandis apply to the construction by the Company of Railway No. 1 and Railway No. 2 authorised by that Act.

28. The Company shall not out of any money which they are by this Act authorised to raise pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the construction of any other railway or the execution of any other work or undertaking.

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Deposits
for future
Bills not to
be paid out
of capital.

29. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Interest not
to be paid
out of
capital.

30. Except as by this Act otherwise expressly provided nothing in this Act contained shall exempt the Company or the railways of the Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels.

Provision as
to general
Railway
Acts.

31. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company out of the funds and revenues of the general undertaking of the Company.

Costs of Act.

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SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LANDS AND BUILDINGS OF WHICH PORTIONS ONLY MAY BE
REQUIRED.

Nos. on deposited Plans.	Description of Property.	Parish.	Townland.
19	Dwelling-house yard outhouses and haggards.	Delgany - -	Rathdown Upper.
10	Cricket ground and pavilion -	Delgany - -	Rathdown Lower.
9	Part field - - -	Delgany - -	Rathdown Lower.

THE SECOND SCHEDULE.

LANDS AND PROPERTIES UNDER WHICH OWNERS MAY BE
REQUIRED TO GRANT EASEMENTS.

Nos. on deposited Plans.	Parish.	Townland.
5 6 7 8 8A 9 10 11	Delgany - - -	Rathdown Upper.

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